

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

PETER JAGNARINE, *Claimant*

v.

CMA-CGM S.A., *Respondent*.

DOCKET NO. 2047(I)

Served: June 5, 2025

ORDER OF: Debra L. Tesh, *Small Claims Officer*.

INITIAL DECISION APPROVING CONFIDENTIAL SETTLEMENT AND DISMISSING PROCEEDING¹

On February 9, 2026, Peter Jagnarine (Claimant), filed a small claim for informal adjudication (Claim) against CMA-CGM S.A. (Respondent) with the Federal Maritime Commission (FMC or Commission). *See* Claim. The Secretary for the FMC served notice of the Claim (Notice) on February 13, 2026. *See* Notice.

On April 1, 2026, Respondent filed a Motion for Extension of Time to respond to the Claim. *See* Respondent's Motion. Claimant opposed the Respondent's Motion. On April 3, 2026, the Chief Administrative Law Judge designated the undersigned as Small Claims Officer. *See* Notice of Assignment. An Order Granting Extension of Time to Respond to Complaint (Order) was issued the same date. *See* Order. Respondent filed a Response on April 22, 2026. *See* Response.

On April 23, 2026, Claimant notified the Commission that the parties had tentatively negotiated a settlement and asked that any actions or deadlines be delayed until completion. *See* 4/23/26 Judges Email.

On June 4, 2026, Claimant submitted a Motion for Voluntary Dismissal by Complainant (Motion) pursuant to 46 C.F.R. § 502.72(a)(3). A Confidential Settlement Agreement was attached as Exhibit A. *See* Motion; Attachment A. The Motion advised the Commission that the parties had engaged in negotiations and agreed upon an amicable settlement. Consequently, Claimant requested an order of dismissal of the Claim with prejudice. Motion, at 1.

The Commission's consistent policy is to "encourage settlements and engage in every presumption which favors a finding that they are fair, correct, and valid." *Access One Transport*,

¹ This Initial Decision will become the decision of the Commission in the absence of review by the Commission. Any party may file exceptions to this decision withing twenty-two (22) days of the date of service. 46 C.F.R. § 502.227.

Inc., v. CMA CGM S.A., Docket No. 24-18, 2024 WL 5119296 at *1 (ALJ Dec. 10, 2024) (quoting *Inlet Fish Producers, Inv. v. Sea-Land Serv., Inc.*, 29 S.R.R. 975, 978 (ALJ May 9, 2002) and *Old Ben Coal Co. v. Sea-Land Serv., Inc.*, 21 F.M.C. 506, 512, 18 S.R.R. 1085, 1091 (ALJ Nov. 29, 1978)).

Although this policy is generally followed, “the Commission does not merely rubber stamp any proffered settlement, no matter how anxious the parties may be to terminate their litigation.” *Access One*, 2024 WL 5119296 at * 2 (quoting *Old Ben Coal*, 18 S.R.R. at 1093). A settlement agreement that does not violate any law or policy and is free of fraud, duress, undue influence, mistake, or other defect that might make it unapprovable would likely be approved. *Id.* “[I]f it is the considered judgment of the parties that whatever benefits might result from the vindication of their positions would be outweighed by the costs of continued litigation and if the settlement otherwise complies with law the Commission authorizes the settlement.” *Delhi Petroleum Pty. Ltd. v. U.S. Atlantic & Gulf/Australia - New Zealand Conf. and Columbus Line, Inc.*, 24 S.R.R. 1129, 1134, 1988 WL 340657 at *7 (ALJ Aug. 12, 1988).

The signed Confidential Settlement Agreement does not show any indicia of fraud, duress, undue influence, or mistake. I find no indication that the Confidential Settlement Agreement violates any law or policy, or contains any other defect, which would render it unapprovable. The terms appear to be fair, reasonable, and adequate and avoid the need for costly and uncertain litigation. Accordingly, the Confidential Settlement Agreement is approved and this proceeding is dismissed with prejudice.

The Motion also requests that the Confidential Settlement Agreement be afforded confidential treatment. The Commission has recognized that “settlement agreements often contain sensitive commercial information that should be protected from public disclosure.” *D.F. Young, Inc. v. NYK Line (North America) Inc.*, Docket No. 16-02, 2018 WL 2411779, at *2 (FMC May 22, 2018). The Commission looks for “good cause demonstrating that the information is a trade secret or other confidential research, development of commercial information.” *Genesis Resource Enterprise Inc. v. Maersk Line, Ltd.*, Docket No. 2014(I), 2024 WL 5054939, at *1 (FMC Dec. 4, 2024). Here, the Motion does not provide any good cause statement for confidential treatment. However, the Confidential Settlement Agreement includes a provision stating the parties agree to keep the terms, including payment, confidential, except by law, regulation, FMC order or lawful process, or as necessary for disclosures to counsel, insurers, auditors, or tax advisors. Attachment A, at 2.

The Confidential Settlement Agreement has been reviewed by the undersigned and is available to the Commission. The terms of the agreement indicate confidential negotiations; therefore, good cause is established and Claimant’s request to keep the terms of the document confidential is reasonable and is granted. The Confidential Settlement Agreement will be maintained in the Secretary’s confidential files.

Upon consideration of the Motion, the Confidential Settlement Agreement, and the record, and good cause having been stated, it is hereby

ORDERED that the Motion to approve the settlement agreement be **GRANTED**. It is

FURTHER ORDERED that the request for confidential treatment be **GRANTED**. It is
FURTHER ORDERED that this proceeding be **DISMISSED WITH PREJUDICE**.

Debra L.

Tesh -S

Digitally signed by

Debra L. Tesh -S

Date: 2026.06.05

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Debra L. Tesh

Small Claims Officer